

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #02	CCRB Case #: 201609998	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/29/2016 9:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/29/2018	Precinct: 84		
Date/Time CV Reported Mon, 12/05/2016 2:44 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/05/2016 2:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael Walsh	4561	945089	WARRSEC
2. DT2 Anthony Davila	05499	921262	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. POM John Ross	02868	949580	WARRSEC
3. DT3 Anthony Giretti	4617	938568	WARRSEC
4. DT3 Terry Brienza	01738	932363	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Walsh	Abuse: Detective Michael Walsh searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Michael Walsh	Abuse: Detective Michael Walsh entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . DT2 Anthony Davila	Discourtesy: Detective Anthony Davila spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On December 5, 2016, § 87(2)(b) filed this complaint with the CCRB via telephone. § 87(2)(b) reported this incident as part of a phone call regarding another incident, which was investigated as CCRB case number § 87(2)(b).

At approximately 9:30 a.m. on November 29, 2016, Detective Michael Walsh of the Brooklyn North Warrant Squad knocked on the door of § 87(2)(b) in Brooklyn. He was looking for § 87(2)(b) § 87(2)(b)'s grandson, who had an active bench warrant for failing to appear in court regarding a summons (Board Review 01), and who was separately wanted by the police in regards to § 87(2)(b) (Board Review 02). Accompanying Detective Walsh in his investigation were Detective Anthony Davila and Detective Terry Brienza, both of the Brooklyn North Warrant Squad.

Detective Walsh, Detective Davila, and Detective Brienza had all previously visited the apartment on November 21, 2016, and spoken to § 87(2)(b) regarding the whereabouts of § 87(2)(b). Detective Walsh decided to revisit the apartment on the incident date based on a Facebook status that § 87(2)(b) had posted and which Detective Walsh interpreted as indicating that § 87(2)(b) was present at § 87(2)(b)'s apartment.

No one responded to Detective Walsh's knocking on the apartment door or to his announcements that the police were present and looking for § 87(2)(b). The officers heard footsteps, conversation, and water running inside of the apartment, and felt someone push on the apartment door from within. Officers removed the peephole of the apartment door and looked into the apartment (**Allegation A**). The detectives allegedly saw § 87(2)(b) moving within the apartment, and called Sergeant Raymond Tomins of the Brooklyn North Warrant Squad to authorize and help execute a forcible entry. Sergeant Tomins arrived, along with Detective Anthony Giretti and Police Officer John Ross, both also of the Brooklyn North Warrant Squad. Sergeant Tomins authorized an entry into the apartment, the door was forced open, and the officers entered the apartment (**Allegation B**). § 87(2)(b) was present within the apartment, and was arrested. § 87(2)(b) was also present, and she spoke to the officers. Detective Davila allegedly told § 87(2)(b) that her statements were "bullshit" (**Allegation C**).

There is no video footage of this incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) arrest made this case unsuitable for mediation.
- As per the New York City Comptroller's Office, as of April 10, 2017, no Notice of Claim had been filed in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second of two CCRB complaints involving § 87(2)(b) § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
- Detective Walsh has been a member of the NYPD for nine years, and has 14 prior allegations in five cases with no substantiated allegations. § 87(2)(g)
[REDACTED]
- Detective Davila has been a member of the NYPD for 18 years, and has 20 prior allegations in 13 cases with one substantiated allegation. In CCRB case number 201307435, the Board substantiated an allegation of premises entered and/or searched with charges. The NYPD enforced a penalty of three forfeited vacation days following an administrative trial. § 87(2)(g)
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

It is undisputed across police documents and all of the officers' statements that Detective Walsh was the investigating officer in this case. In addition, Detective Walsh stated that he decided to use his baton and hands to remove the peephole and looked through the peephole to observe the apartment's interior. § 87(2)(g)
[REDACTED]
[REDACTED]

Similarly, while Sergeant Tomins was the ranking supervisor during the latter portion of this incident and it is undisputed amongst police documents and the officers' statements that he authorized the entry into § 87(2)(b)'s apartment, he did so based solely upon a conversation with Detective Walsh. Detective Walsh and Sergeant Tomins both described a conversation in which Detective Walsh listed the factors leading him to believe that § 87(2)(b) was present in the apartment. Sergeant Tomins had no prior involvement with this investigation, and was wholly reliant on the information being relayed to him by Detective Walsh. § 87(2)(g)
[REDACTED]

In both her telephone statement and her sworn statement, § 87(2)(b) alleged that multiple officers entered her bedroom while she was in bed, and that one of them used profanity towards her. While § 87(2)(b) was not able to describe this officer, or most of the other officers in her room, in her sworn statement, she described the profane officer as having a "yellow" complexion and a "stocky" build in her telephone statement. She also described her conversation with this officer as centering on whether or not she had been aware of the officers' presence outside of her apartment.

Detective Davila told the investigation that he encountered § 87(2)(b) in her bedroom, and that he spoke to her about why she hadn't come to the door and let the police in. None of the other officers' described having such a conversation with § 87(2)(b) in her bedroom. Detective Davila is also a 5'11"-tall, 215-pound Hispanic male. § 87(2)(g)
[REDACTED]
[REDACTED]

Allegations Not Pleaded

In her telephone statement, § 87(2)(b) said that she asked the officers to show her “papers” explaining why they were in her apartment, and that they ignored this request. However, in her sworn statement, § 87(2)(b) made no allegations regarding a request to see a warrant or other documents. § 87(2)(g)

It is undisputed that officers forcibly opened § 87(2)(b)'s apartment door, breaking it so that it would not close again. However, it is similarly undisputed that this action was taken as a direct prerequisite to the officers' entry into the apartment. § 87(2)(g)

Allegation A –Abuse of Authority: Detective Michael Walsh searched

§ 87(2)(b) **in Brooklyn.**

§ 87(2)(b) provided a telephone statement on December 5, 2016 (Board Review 05) and was interviewed at the CCRB on December 20, 2016. § 87(2)(b) provided a telephone statement on January 10, 2017 (Board Review 06). Detective Walsh was interviewed on January 11, 2017. Sergeant Tomins was interviewed on January 19, 2017. Police Officer Ross was interviewed on January 23, 2017. Detective Davila was interviewed on January 26, 2017. Detective Giretti was interviewed on January 27, 2017. Detective Brienza was interviewed on February 9, 2017.

The following elements of the incident are undisputed between all of the involved parties. On November 21, 2016, Detective Walsh and other officers visited § 87(2)(b)'s apartment in possession of an arrest warrant for § 87(2)(b). While § 87(2)(b) was not there, § 87(2)(b) confirmed that he lives with her to Detective Walsh and the other officers. On November 29, 2016, multiple officers, including Detective Walsh, went to § 87(2)(b)'s apartment again looking for § 87(2)(b). The officers forcibly entered the apartment, looked throughout the apartment, and took § 87(2)(b) into custody. § 87(2)(g)

§ 87(2)(b) described her morning before the officers' entry as follows. At approximately 7:00 or 7:30 a.m., she escorted her granddaughter to the building elevator and then returned to her apartment. At approximately 8:00 a.m., § 87(2)(b) came home, went into his room, and closed the door. § 87(2)(b) took § 87(2)(b) medication that routinely makes her drowsy, went into her bedroom, and went to sleep. § 87(2)(b) noted that in addition to the medication causing her to sleep deeply she also slept on her right side, blocking her right ear from hearing anything. § 87(2)(b)'s left ear does not function. § 87(2)(b) never heard officers knocking on her door or announcing themselves, and only awoke when an officer came into her room and told her to get up.

According to § 87(2)(b) he came home to the apartment at approximately 4:00 a.m. on November 29, 2016. He then went to sleep. He woke up at an unspecified time when he heard loud banging noises, and did not know what was happening. As the banging continued, § 87(2)(b) initially stayed in his room and got dressed. § 87(2)(b) did not hear anyone announce that the police were at the door, and did not know that the police were present. § 87(2)(b) does not own the apartment in question, and he does not answer the door as a matter of routine.

In his interview, Detective Walsh explained the information that he used as a basis for visiting the incident location and looking for § 87(2)(b). Detective Walsh said that the arrest warrant listed § 87(2)(b)'s address, § 87(2)(b) in Brooklyn, as § 87(2)(b) residence. Furthermore, it is undisputed that § 87(2)(b) told Detective Walsh that § 87(2)(b) lived with her during the November 21, 2016, incident. Detective Walsh said that he decided to revisit § 87(2)(b)'s apartment on November 29, 2016, based on a Facebook post he saw on § 87(2)(b)'s profile. Detective Walsh provided the investigation with a printout of § 87(2)(b)'s profile which included several posts. Detective Walsh specified that a post made at 1:23 a.m. on the incident date was the one which he interpreted as indicating that § 87(2)(b) was at home. The post reads as follows: “They say stains don’t stick around anymore but don’t wonder why, I just got tired of standing outside hearing my grandmama whine [crying emoji] [winking-and-kissing emoji] [heart emoji]” (Board Review 07).

Upon arriving at § 87(2)(b), Detective Walsh knocked on the doors of two apartments near the target apartment. In both apartments, someone answered the door and confirmed that § 87(2)(b) lived in the neighboring apartment. Neither individual provided any further information to Detective Walsh, nor did either individual say that § 87(2)(b) was home at this specific time.

Detective Walsh pressed his ear against the target apartment’s door and heard signs of occupancy, including voices talking and water running. Det. Walsh then knocked on the door of the target apartment. The previously audible sounds stopped, and no sound came from within the apartment. Detective Walsh called out that the police were outside, that they were looking for § 87(2)(b) that they had an arrest warrant, and that he had visited previously, identifying himself as “Detective Walsh”. Detective Walsh emphasized that the officers would not be leaving without entering the apartment, and urged the presumed occupants to open the door.

During the course of this attempted dialogue, Detective Walsh heard footsteps that sounded as though someone was approaching the door from within the apartment. Detective Walsh pushed his foot up against the door and listened with his ear pressed to the door to hear what was happening. Detective Walsh then felt someone push the door towards him, causing the door to shift slightly. At this point, Det. Walsh decided to remove the peephole from the door. Det. Walsh used his collapsible baton to strike the peephole, after which he was able to unscrew it and remove it from the door. During this process, Det. Walsh did not encounter any resistance from anyone inside the apartment. Once the peephole was removed, Det. Walsh looked through the hole in the door. From his position, he could see down a hallway that ran straight away from the apartment’s front door.

Detective Davila and Detective Brienza § 87(2)(g) described Detective Walsh as leading the investigation and making the decision to revisit the apartment. Detective Davila described a similar set of events as occurring at the apartment (the officers knocking on neighboring doors, hearing sounds of occupancy within the target apartment, announcing their presence, listening at the door, and removing the peephole), while Detective Brienza did not recall many of these details (including whether or not the peephole was removed) § 87(2)(g).

A bench or arrest warrant permits entry into what police reasonably believe to be the suspect's residence for the purpose of searching for and arresting the suspect; provided that, at the time of entry, the police reasonably believe that the suspect is present. People v. Smith, 806 N.Y.S. 2d 447 (2005) (Board Review 08). If there is a reasonable belief that the suspect is present within the residence and admittance is not allowed after the required notice is given, forcible entry is permitted. The reasonable belief standard is less stringent than the probable cause standard and is based on an assessment of the totality of circumstances. People v. Paige, 911 N.Y.S.2d 176 (2010) (Board Review 09). An officer's looking into a private residence through a crack in blinds otherwise covering a window constitutes a search. United States v. Christy, 810 F Supp. 2d 1219 (2011) (Board Review 10). Officers without specific knowledge of a warrant subject's work schedule can reasonably assume that the subject will be present at their residence at 8:30 a.m. United States v. Magluta, 44 F.3d 1530 (1995) quoting United States v. Woods, 560 F.2d 660 (1977) (Board Review 11 and Board Review 12).

§ 87(2)(g)

in United States v. Christy, the Supreme Court held that an officer standing outside of a home and looking into it through a window that was mostly obscured with blinds had conducted a search in that they had taken action to view a portion of the house that a resident would reasonably expect to be private. § 87(2)(g)

§ 87(2)(g)

In United States v. Magluta, the Supreme Court utilized a standard of reasonableness formerly established in United States v. Woods, which holds that an officer can reasonably assume that an arrest warrant subject is inside of his residence as a matter of routine at 8:30 a.m. The Court notes that this assumption is valid in a situation in which officers do not have specific information about the subject's work schedule. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that that **Allegation A be exonerated** § 87(2)(g)

Allegation B –Abuse of Authority: Detective Michael Walsh entered
§ 87(2)(b) **in Brooklyn.**

As noted above, § 87(2)(b) described herself as unaware of any police activity until officers were already inside of the apartment. § 87(2)(b) said that while he awoke to hear banging on the apartment door, he did not hear anyone announce that the police were present prior to officers entering the apartment.

According to Detective Walsh, once the peephole was removed he looked through the hole in the door. From his position, he could see down a hallway that ran straight away from the apartment's front door. § 87(2)(b) was visible walking back and forth in the hallway. Detective Walsh described her as apparently trying to get out of sight, and as moving quickly and evasively. Detective Walsh did not observe anyone else in the apartment at this time. Seeing § 87(2)(b) in the apartment raised Detective Walsh's suspicion that § 87(2)(b) was also present, since on his first visit to the apartment § 87(2)(b) had readily opened the door and spoken to officers. Detective Walsh called Sergeant Tomins at this point.

Detective Davila provided an account of the time period between the peephole's removal and the officers' entry into the apartment § 87(2)(g). Detective Davila also looked through the hole in the door. He saw a person move from the right side of his field of view towards the left side of his field of view, but could not identify the person or determine any of their pedigree information. The person was moving quickly, but not running. The person was only briefly visible within Detective Davila's field of view. Detective Davila also saw § 87(2)(b) through the peephole. § 87(2)(b) was standing at the right edge of Detective Davila's field of view, and was closer to Detective Davila's position than the other person had been. Upon seeing her, Detective Davila called out that she should answer the door. § 87(2)(b) then moved out of view.

According to all of the interviewed officers, once Detective Walsh called, it took approximately 15 minutes for Sergeant Tomins to arrive at the incident location. During this time, Detective Walsh, Detective Davila, and Detective Brienza remained outside of the apartment door, periodically looking through the hole in the door to monitor any activity in the apartment. Detective Walsh continued to attempt to communicate through the door, repeating his desire to speak to § 87(2)(b)

According to all of the interviewed officers, Sergeant Tomins arrived (along with Detective Girretti and Police Officer Ross) and spoke to Detective Walsh. According to Sergeant Tomins, Detective Walsh provided the following information as substantiating his belief that § 87(2)(b) was inside the apartment: the target apartment was listed as § 87(2)(b) address on the arrest warrant in Detective Walsh's possession; Detective Walsh had, previously that morning, spoken to residents of neighboring apartments who confirmed that § 87(2)(b) lived in the target apartment; Detective Walsh had, on a previous day, spoken to a female relative of § 87(2)(b)

herself a resident of the target apartment, who confirmed that § 87(2)(b) lived in the target apartment; while listening to the door of the target apartment on this day, Detective Walsh felt someone push the door towards him; and Detective Walsh had viewed a Facebook post made by § 87(2)(b) earlier that morning stating that § 87(2)(b) was home with this female relative (either his mother or grandmother). When asked by the investigation to elaborate on his understanding of the timeframe of the Facebook post, Sergeant Tomins described it as indicating that § 87(2)(b) was home “now”. Sergeant Tomins stated that Detective Walsh did not show him a printout, screen-captured image, or other visual proof of the Facebook post in question during the incident.

According to all of the interviewed officers, Sergeant Tomins authorized a forcible entry into the apartment after speaking with Detective Walsh. Officers continued to announce their presence and demand that the door be opened, up until Detective Giretti used a manual ram to force the door open. The officers then went into the apartment, located § 87(2)(b) and took him into custody.

§ 87(2)(g)
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Therefore, it is recommended that **Allegation B be exonerated** § 87(2)(g)

Allegation C – Discourtesy: Detective Anthony Davila spoke discourteously to § 87(2)(b)

According to § 87(2)(b) officers entered her bedroom and woke her up. § 87(2)(b) sat up in her bed, groggy from the medication she had taken. An officer, PO2, said “You heard him, get up.” § 87(2)(b) said that she hadn’t heard the instructions being issued. PO2 replied “Bullshit, show me some ID.” § 87(2)(b) replied “Go find your mother and tell her to ID you, since you want to be so nasty in my house.” PO2 then said “Ah well, too bad you didn’t hear us.”

When asked, all of the interviewed officers denied using any profanity towards § 87(2)(b) or hearing another officer use profanity. When asked about his actions inside of the apartment, Detective Davila said that he did enter § 87(2)(b)’s bedroom, see her sitting in bed, and speak to her. § 87(2)(b) told Detective Davila that she had been asleep. Detective Davila asked her why she had not come to the door, and § 87(2)(b) reiterated that she had been asleep. Detective Davila told her that he had seen her moving around through the peephole. Detective Davila described this situation as “comical” to the investigation.

§ 87(2)(g)
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Therefore, it is recommended that **Allegation C be unsubstantiated**.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date